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A

TRUE NARRATIVE

Of The

TRYAL

Of Titus Oates for Perjury

At the KING S-Bench-Barr at Westminster On Friday the 8th. of May. 1685

Perjury is one of the most detestable Crimes, especially when its complicated with Murther; for it violates at once all Laws Humane and Divine, unhinging the whole Society of the World. This day being the eighth day of this present month of May, 1685. was Convicted of this most abominable Crime. *Titus Oates* formerly known by the name of the *Salamanca Doctor*, one who by his Perjury and Lies inflamed and liked to have overthrown three most flourishing Kingdoms: The manner thus;

About nine of the Clock in the Forenoon the Court sate, where was the Right Honourable *Sir George Jefferies* Kt. and Bar. Lord Chief Justice of *England*, Judge *Witthins*, Judge *Holloway*, &c. being on the Bench, and the Jury called, *Oates* excepted against some of them for being of the Grand Jury, when the Indictment was found, and it was admitted for a just Barr; then the Indictment was read in *Latin* and *English*; the substance of which was, that whereas *Titus Oates* had sworn, and caused to be put to death

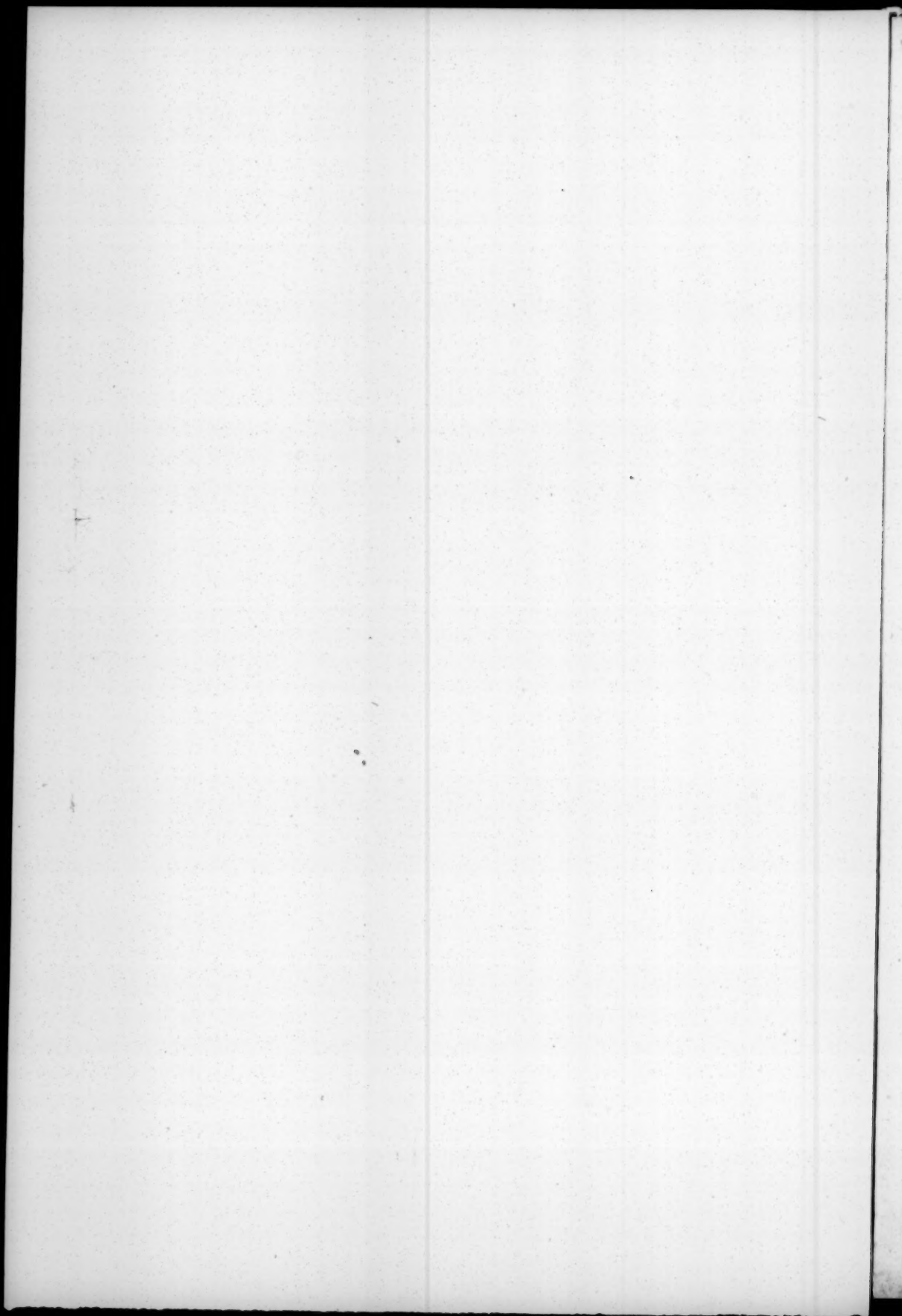
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Death several Persons, namely the Five Jesuits, Pickering, Groves and Ireland, &c.

He swore that he was at a Consult at the *White-Horse-Tavern* in the *Strand*, where he being present, and carrying the Papers in which the Death of King *Charles* the Second of Blessed Memory, from one Chamber to another, where he said they all unanimously Signed the Kings Death on the 24th. of *April Anno Dom. 1678*. The Falsities of which was proved by these following Evidence, &c. Werent here named, being all persons of Quality and Estates, who hapned to be Students at *St Omers* at that time that *Oates* was there. First *Mr. Hillsly* deposed that he came from *St Omers* the very day that *Mr. Oates* pretended that the Consult was in the *Strand*, and that he left *Mr. Oates* there; and whereas *Oates* had formerly Sworn that he came over with *Hillsly*. *Hillsly* swore he did not see him all the way: Then *Mr. Barnaby* swore that he met *Mr. Hillsly* by the way and he saw not *Oates* with him, and that going on to *St Omers* and arriving there within two days after he had met *Mr. Hillsly* in Kent, he found *Mr. Oates* at *St Omers*, so that he possibly could not be here in *London*, all the rest of the Witnesses for the King, swore that *Oates* coming to *St Omers* about *December 1677* never was to their knowledg out of the Seminary till the the Mid-Summer 1678, But one night which was at *Watton*, a place about two Leagues from *St Omers*, and they saw him every day either at Meat or Play, and that he was so remarkable for his odd Carriage, that they took particular notice of him, especially he sitting at a particular Table, and not among the Boys by reason of his Age. This was attested by above 20 Witnesses, viz. Lord *Gerrard Bromely*, --- *Gerrard Esq;* --- *Hagerston*, Esq; --- *Wright Esq;* --- *Price*, Mr. *Arundel* --- *Turbevill Esq;* --- *Thornton Esq;* --- *Pool Esq;* Mr. *Dorrel* and one *Mr. Morgan*, one that was then a Papist, but is now a Church of England Minister, &c.

Mr Oates's Questions put to them, was, what Religion they were of, and how long they were there, and what they did there; and offered to ask some things, which was, my Lord Chief Justice told him, not proper nor fit for them to answer, because of Penal Statutes against Papists: He behaved himself with his wonted Confidence, and seemed to have more Brags in his Face than ever; but my Lord Chief Justice kept him within his bounds, and gave him all the fair Play imaginable, before he began his particular Defence; he made a long canting Harangue how he had been believed by Parliaments, and how several Judges had spoke formerly of him, and particularly my Lord Chief Justice; all which being



ing not admitted as Evidence, he was directed by the Court, to prove his being here in *April* the 24th. 78. he produced one Mrs. *Cicely Majo*; who swore that about that time she saw him in a Disguise at Sir *Richard Barkers* House: He having on a Grey Hat, no Hair, a pirifull Gray Sute. Sir *Robert's* Coach-man, swore he saw him there in a black Hat, a long black Perriwig and a Cinnamon Sute; besides they disagreed in several things, and so they being but otherwise despicable People, their Evidence was looked upon as nothing worth; and they contradicted *Oates's* own Testimony, for he swore he was back at St. *Omers* in the beginning of *May*, and my Lord Chief Justice asked *Oates* where he Lodged when he pretended to be here in *April* and the beginning of *May*. that he might producethe People of the House to be Evidence for his being here; but he shuffled and would assign none, which was look'd on by all as a clear Conviction. After this, Mr. *Oates* to make a Noise caused to be called a many great Names to shew what Authority his Evidence once had viz. my Lord *Devonshire*, my Lord *Clay*, who said it was so long since, that they could give small account of it; my Lord *Huntingdon* said it is true, he once believed something which he swore, but he did now on his Conscience believe him to be an errant Rogue, and a spiller of Innocent blood.

My Lord Barron *Montague* being called by *Oates*, he gave him a slender Character, and that formerly he did not hear him.

Mr. *Williams*, Speaker of the House of Commons, Sir *George Treby* were called, but said little or nothing.

After Mr. *Oates* had done with his Evidence, Mr. Attorney General brought in more Evidence for the King, some to prove, others to Corroborate. The witness to prove where first Sir *George Wakeman*, who was formerly quitted at the Old-Bayly: After Sir *George* was sworn, he was asked by the Court with what Mr *Oates* had formerly sworn against him, viz. of taking 500 l. to poyson the King; and he answered by Virtue of the Oath he had taken, it was all false. My Lord *Castlemain* attested the same as to the Treason *Oates* had formerly Charged him with, then one Mr. *Smith*, formerly Schoolmaster in *Islington* was produced, and it was proved that he confessed himself Perjured in Favor of *Oates's* Testimony in the Tryal of the Five *Jesuits* being induced by Fear and Gain.

The same was proved upon Mr. *Clay* who was induced by threats and promises of *Oates* and Sir *William Waller*, this was proved by one Mr. *Davenport* a keeper of the Goal who heard him threaten *Clay*, with Death, unless he would second his Evidence,

dence, and he being an Old Weak man, was drawn in. After the Evidence on both sides had made an end, My *Lord Chief Justice* told the Prisoner he had free Liberty to make what Exceptions he pleased, Who then began a long and Malapert Harangue; the chief drift of which was to prove that the Papists ought not to be Credited because they were Papists, and for this produced some Records and Statutes.

And to this he was answered by my *Lord Chief Justice*, that by the same Reason all the Dissenters from the Church of *England* ought to be excepted.

And that it was impossible at that Rate that any man should have Right done him. Oates was for the most part all along his Speech Impertinent and saucy, so that my Lord threatned to turn him out of the Court, and after he had spent something more than half an hours time he withdrew of himself, and went out of the Hall, with his Guards along with him, as he came towards the middle of the Hall, the People began to shout, and so shouted him quite out of the Hall.

After a little space of Silence, the Solicitor General began to sum up the whole, and continued for three quarters of an hour, When he had done, my *Lord Chief Justice* began a most Eloquent and Emphatical Speech.

Amongst other things, telling the Jury, that this was a cause that the Honour of the whole Nation was concerned in, not to let a person so publicly infamous, escape Justice. That he was a person of an hardened impudence and Conscience, and not worthy of the Name of the Church of *England*, that he was Guilty of spilling Innocent Blood, and had spared no person though never so nearly related to the Crown. And after he had exactly and particularly Summed up all the witnesses on both sides He concluded with these Words, *That he was the blackest Villain upon the Face of the Earth.*

As these Prodigious Crimes do plainly manifest to every unprejudiced person

The Speech being ended, the Jury withdrew, and after a certain space of time returned again, and brought him in Guilty of the Indictment.

And thus, this Famous, who sought to get an infamous Fame, by inflaming these Kingdoms, like him that thought to Eternise his name; by Burning of the Temple of *Diana*, he is like to have a never Dying Name, in an Eternal Infamy.

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